FIDUCIARY LIABILITY INSURANCE POLICY

NOTICES:

This policy is issued by National Technology Insurance Company, Inc., a captive insurance company domiciled in the State of Utah. This captive insurer is not subject to all of the insurance laws and regulations of your state. State insurance insolvency guaranty funds are not available for this captive insurer.

THIS IS A "CLAIMS-MADE" LIABILITY COVERAGE FORM. It provides coverage for Claims first made against an Insured during the Policy Period (or any applicable Extended Reporting Period). Defense Costs reduce the Limit of Liability (unless otherwise stated) and may be applied against the Retention. Please read the entire Policy carefully.

In consideration of the payment of the premium, and in reliance upon the statements made in the **Application**, which is incorporated into and forms a part of this **Policy**, and subject to all of the terms, conditions, exclusions, and endorsements contained herein, the **Insurer** named in the Declarations and the **Insured** agree as follows:

This **Policy** is a binding legal agreement between the **Named Insured** (sometimes referred to herein as "You" or "Your") and the Insurer (referred to herein as "We," "Us," or "Our"). This **Policy** is issued in accordance with the terms stated below.

GENERAL TERMS AND CONDITIONS

SECTION I: TERMS AND CONDITIONS

Unless a specific **Coverage Part** states otherwise, these General Terms and Conditions apply to all **Coverage Parts**. The provisions of a **Coverage Part** apply only to that **Coverage Part**. If a term, condition, or limitation in a **Coverage Part** conflicts with these General Terms and Conditions, the **Coverage Part** controls that **Coverage Part** alone and does not affect any other **Coverage Part**. Any term defined in a **Coverage Part**, including words shown in **boldface**, has the meaning given in that **Coverage Part** when applied to that **Coverage Part**; otherwise, the definitions in these General Terms and Conditions apply.

SECTION II: DEFINITIONS

1. **Application** means all written or electronic statements, documents, warranties, and information submitted by or on behalf of an **Insured** to the **Insurer** for the purpose of underwriting this **Policy** or any prior policy that this **Policy** renews, replaces, or succeeds, including (i) signed applications and attachments, (ii) materials later provided at the **Insurer's** request, and (iii) public filings, if any, made by or for an **Organization** with the Securities and Exchange Commission during the twelve months preceding inception. The **Application** is deemed attached to and incorporated into this **Policy**.
2. **Change in Control** means:
    1. The merger, consolidation, or combination of the **Named Insured** into another entity such that the **Named Insured** is not the surviving entity; or
    2. The acquisition by any person or entity of more than 50% of the outstanding securities, voting securities, or equity interest of the **Named Insured**.
3. **Control** means either (a) direct or indirect ownership of more than 50 percent of the outstanding voting securities of an entity or (b) the contractual right to elect, appoint, or designate a majority of an entity's directors, trustees, managers, or equivalent governing persons.
4. **Coverage Part** means, to the extent purchased as identified in the Declarations, any of the following coverage sections of this Policy, which may be amended by Endorsement: Directors and Officers Liability, Employment Practices Liability, Fiduciary Liability, Cyber Liability, Technology Errors & Omissions Coverage, and Media Liability Coverage.
5. **Defense Costs** means the reasonable and necessary fees, costs and expenses incurred in the investigation, defense, or appeal of a Claim, including the cost of appeal bonds or similar bonds (without any obligation to furnish such bond on the part of the Insurer). **Defense Costs** shall not include wages, salaries, fees or benefit expenses associated with any **Insured Person** or the **Organization**'s overhead expenses.
6. **Employee** means any natural person:

1. whose labor or service is or was directed by the **Organization** as an employee on a full-time or part-time basis; and
2. solely under this Policy's Employment Practices Liability **Coverage Part**, temporary, seasonal, and leased employees, volunteer workers, and applicants or prospective employees seeking employment with the **Organization**;

but only while the person is acting in such capacity, and shall not include any independent contractors.

7. **ERISA** means the Employee Retirement Income Security Act of 1974, as amended, including its rules and regulations, and any similar law.
8. **Executive** means:
   1. any duly elected or appointed director, officer, member of a management or supervisory board, in-house general counsel, advisory-board member, natural-person general partner, or foreign equivalent of an **Organization**;
   2. the lawful spouse or domestic partner of any of the persons set forth in the above 1. of this definition, but only to the extent the spouse or domestic partner is a party to any **Claim** solely because of his or her status as the spouse or domestic partner of any such person and only for the purposes of any **Claim** seeking damages recoverable from marital community property, property jointly held by any such person and the spouse or domestic partner, or property transferred from any such person to the spouse or domestic partner; and
   3. the estates, heirs, legal representatives, trusts, estate planning vehicles or assigns of any of the persons set forth in 1. of this definition, but only in the event of such person's death, incapacity, or bankruptcy.
9. **Indemnifiable Loss** means **Loss** that the **Organization** is permitted or required to pay to or on behalf of an **Insured Person** under law, corporate charter, bylaws, or written agreement.
10. **Insolvency** means the appointment of a receiver, conservator, liquidator, trustee, rehabilitator, or similar official to manage, supervise, or liquidate an **Organization**, or the **Organization** becoming a debtor in possession within the meaning of the United States Bankruptcy Code or similar legal status under foreign law.

K. **Named Insured** means the legal entity designated in the Declarations as the **Named Insured**.

L. **Non-Indemnifiable Loss** means **Loss** that the **Organization** is neither permitted nor required to pay to or on behalf of an **Insured Person** under law, corporate charter, bylaws, or written agreement.

13. **Organization** means the **Named Insured** and any **Subsidiary**, including any such entity as a debtor in possession within the meaning of the United States Bankruptcy Code or similar legal status under foreign law.
14. **Policy** means, collectively, the General Terms and Conditions, Declarations, all **Coverage Parts** indicated as purchased, and all Endorsements.
15. **Policy Period** means the time period shown in the Declarations, subject to earlier cancellation in accordance with **Policy** terms.

16. **Contaminant** means any solid, liquid, gaseous, biological, thermal or radioactive substance that can irritate, corrupt or harm persons, property, water, air or soil, including by-products and waste.
17. **Regulatory Body** means any federal, state, local or foreign law enforcement or governmental authority or the enforcement unit of any securities exchange or similar self-regulating body.
18. **Related Claims** means all **Claims** based upon, arising out of, or in any way involving the same **Wrongful Acts** or **Related Wrongful Acts**, regardless of the number of claimants, **Insureds**, or proceedings.
19. **Related Wrongful Acts** means any **Wrongful Acts** which have as a common nexus any common fact, circumstance, situation, event, transaction, cause or series of causally related facts, circumstances, situations, events, transactions, or causes.
20. **Senior Executive** means the Chief Executive Officer, Chief Financial Officer, President, Chief Operating Officer, or General Counsel (or any individual serving in an equivalent position) of the **Organization** or any person who signed the **Application**.
21. **Subsidiary** means any entity over which the **Named Insured** has **Control**, including any not-for-profit entity exclusively controlled by the **Named Insured**.

SECTION III. LIMITATIONS OF LIABILITY

1. **Policy Limit of Liability** – The Policy Limit of Liability stated in the Declarations is the maximum amount We will pay under this **Policy** for all **Loss** covered by all **Coverage Parts** combined.
    1. Any **Loss** paid under one **Coverage Part** shall reduce the remaining Policy Limit of Liability available for **Loss** under all other **Coverage Parts**.
    2. If a single **Claim** is covered under multiple **Coverage Parts**, the most We will pay for that Claim will not exceed the highest single **Coverage Part** limit applicable to that **Claim**.
2. **Coverage Part Aggregate Limit of Liability** – Subject to the Policy Limit of Liability, any **Coverage Part** Aggregate Limit of Liability stated in the Declarations is the most We will pay under the respective **Coverage Part** for all **Claims** covered under that **Coverage Part**. Each **Coverage Part's** Aggregate Limit of Liability is part of, and not in addition to, the Policy Limit of Liability.
3. **Coverage Limits of Liability** – Subject to the Policy Limit of Liability and any applicable **Coverage Part** Aggregate Limit of Liability, each Coverage Limit of Liability stated in the Declarations for an Insuring Agreement is the maximum we will pay under that respective Insuring Agreement.
4. **Sublimits of Liability** – Any Sublimit of Liability, if any, stated in the Declarations is the most We will pay for all **Loss** that is subject to that Sublimit. Each such Sublimit is part of, and not in addition to, the applicable **Coverage Part** Limit of Liability and the **Policy** Limit of Liability.

5. **Defense Costs** – **Defense Costs** are part of, and not in addition to, the Limits of Liability applicable to each **Coverage Part**. Payment by Us of **Defense Costs** will reduce and may exhaust the applicable Limit of Liability.
6. **Exhaustion of Limits** – If any applicable Limit of Liability under this **Policy** is exhausted by the payment of **Loss**, our obligations under this **Policy** (including, without limitation, any duty to defend) shall be completely fulfilled and extinguished. We are entitled to pay **Loss** as it becomes due and payable, without consideration of any other future potential payment obligations under this **Policy**.

SECTION IV. COVERAGE TERRITORY

This **Policy** applies to **Claims** on a worldwide basis unless otherwise stated in a particular **Coverage Part**, and always subject to applicable law and sanctions. All premiums, Limits of Liability, Retentions, **Loss**, or other amounts under this **Policy** are expressed and payable in the currency of the United States of America (U.S. dollars). If any judgment, settlement, or other element of **Loss** under this **Policy** is stated in a currency other than U.S. dollars, payment under this **Policy** shall be made in U.S. dollars at the rate of exchange published in *The Wall Street Journal* on the date the final judgment is entered, the settlement amount is agreed upon, or the other element of **Loss** becomes due.

However, this **Policy** will not apply in any country or territory where such application would violate the laws of the United States. This includes, but is not limited to, any country or region that is subject to U.S. economic or trade sanctions or export control laws administered by the U.S. Treasury Department's Office of Foreign Assets Control (OFAC) or other applicable U.S. government agencies.

SECTION V. RETENTIONS

1. Our liability to pay **Loss** on account of any **Claim** shall apply only to that part of the **Loss** which is in excess of the applicable Retention amount stated in the Declarations. We will have no responsibility to pay any **Loss** until the applicable Retention has been fully satisfied. You shall be responsible for payment of the Retention, which shall remain uninsured. Payment of any Retention shall not reduce the Limits of Liability under this **Policy**.
2. If a single **Claim** (including any **Related Claims**) is covered in whole or in part under more than one **Coverage Part**, the Retention applicable to each **Coverage Part** will apply to the **Loss** covered under that **Coverage Part**. However, the sum of all Retentions applicable to such **Claim** shall not exceed the largest applicable Retention among the **Coverage Parts** involved.
3. If any covered **Loss** within an applicable Retention is paid on behalf of an Insured (including on behalf of an Insured Person) by any source other than You, such payment will erode or reduce the Retention to the extent of that payment. This includes payments made under another valid insurance policy (such as a Side-A Difference-In-Conditions policy specifically excess of this **Policy**).
4. No Retention shall apply to **Non-Indemnifiable Loss**.

SECTION VI. RELATED CLAIMS

All **Related Claims** shall be deemed to be one single **Claim** for the purposes of this **Policy**. Such **Claim** shall be deemed first made on the date the earliest of the **Related Claims** was first made against any **Insured**, regardless of whether that date falls before, during, or after the **Policy Period**. In no event shall a single lawsuit or proceeding be treated as more than one **Claim**, even if it involves multiple claimants or causes of action or alleges multiple or different **Wrongful Acts**.

SECTION VII. EXTENDED REPORTING PERIOD

1. **Automatic Extended Reporting Period:** No automatic extended reporting period applies under this **Policy**. Coverage for **Claims** first made after the end of the **Policy Period** is available only if the **Named Insured** elects to and purchases an Optional Extended Reporting Period pursuant to Section VII.B.
2. **Optional Extended Reporting Period:**
    1. If any **Coverage Part** is cancelled or not renewed by Us or by You, then You shall have the right to purchase an Optional Extended Reporting Period for that **Coverage Part**, which will begin immediately after the effective date of cancellation or nonrenewal. This Optional Extended Reporting Period (if purchased) will extend the time period during which you may report **Claims** to us under the cancelled/non-renewed **Coverage Part**, but only for **Claims** arising from **Wrongful Acts** that occurred entirely prior to the effective date of cancellation or nonrenewal.
    2. The available durations (time periods) for the Optional Extended Reporting Period and the additional premium amounts for each are set forth in the Declarations. To exercise this right, you must provide written notice to us of your election and pay the applicable additional premium within 60 days after the effective date of cancellation or nonrenewal. Once 60 days have passed after the cancellation or nonrenewal, the right to purchase the Optional Extended Reporting Period for that **Coverage Part** expires.
    3. If an Optional Extended Reporting Period is purchased, the entire additional premium for it shall be deemed fully earned at the inception of the Optional Extended Reporting Period. The Optional Extended Reporting Period cannot be cancelled by either You or Us after it has been activated (except in the event that the **Policy** is reinstated or renewed without a lapse in coverage).
    4. The Optional Extended Reporting Period does not increase the Limits of Liability under this **Policy**. The available Limits of Liability for **Claims** reported during any Extended Reporting Period are those remaining under the **Policy** (and applicable **Coverage Part**) as of the end of the Policy Period, and **Loss** paid towards **Claims** falling within the Extended Reporting Period erode and may exhaust the applicable Limits of Liability.
    5. Except as otherwise provided in **SECTION IV. RELATED CLAIMS**, a **Claim** first made against an Insured during any Optional Extended Reporting Period and properly reported to us in accordance with the **Policy** shall be deemed to

have been made on the last day of the Policy Period, provided the Claim arises from a Wrongful Act occurring prior to the effective date of cancellation or nonrenewal.

SECTION VIII. DEFENSE OF CLAIMS AND SETTLEMENT

1. **Duty to Defend:** We will and have the right and duty to defend any **Claim** against an **Insured**, even if the allegations in such **Claim** are groundless, false or fraudulent. This duty to defend applies only to **Claims** covered by one or more **Coverage Parts** of this **Policy** and shall cease when the applicable Limit of Liability (whether a **Coverage Part** limit or the **Policy** Limit) has been exhausted by payment of Loss.
2. **Cooperation, Settlement and Consent:**
    1. **Insured's Duty to Cooperate:** The **Insureds** agree that they will not admit or assume any liability, voluntarily enter into any settlement agreement, stipulate to any judgment, or incur any **Loss** without Our prior written consent, with such consent not to be unreasonable withheld. We shall not be liable for, nor bound by, any settlement, assumed obligation, admission of liability, or **Defense Costs** to which We have not agreed in writing. However, if you are able to settle a **Claim** for an amount (including **Defense Costs**) that does not exceed the applicable Retention, our consent is not required for that settlement. In that event, You must promptly notify Us of the resolution of the **Claim** and provide details of the settlement.

       The **Insureds** agree to cooperate with Us in the investigation, defense, and settlement of any **Claim**. The **Insureds** further agree to provide Us any such information, assistance, and cooperation as We or defense counsel may reasonably request.
    2. **Insurer's Right to Settle:** We shall have the right to investigate any **Claim** and to make any settlement offer we deem appropriate in a **Claim**, but we will not commit to any settlement without the consent of the **Insured**, such consent not to be unreasonably withheld.
    3. **Consequences of Refusal to Consent (Hammer Clause):** If We recommend a settlement of a **Claim** within the remaining applicable Limit of Liability and the **Insured** does not consent to such settlement, our liability for that **Claim** shall not exceed the amount for which the **Claim** could have been settled, plus **Defense Costs** incurred up to the date that the **Insured** refused consent. In such case, We will have the right to withdraw from the further defense of the **Claim**, and you shall assume the defense of the **Claim** at your own cost. Our obligation to pay any further **Loss** for that **Claim** will cease once We have paid the amount of the proposed settlement (plus **Defense Costs** incurred up to the refusal date), subject to the applicable Limit of Liability.

SECTION IX. NOTICE OF CLAIMS AND POTENTIAL CLAIMS

1. **Notice of Claims:** As a condition precedent to coverage under this Policy, the Insured (or the Named Insured on behalf of any Insured) must give written notice to us of any Claim made against an Insured as soon as practicable after a **Senior Executive** first becomes aware of the **Claim**. In all events, such notice of Claim must be given no later than ninety (90) days after the end of the **Policy Period** (or within any applicable Extended Reporting Period).
2. **Effect of Late Notice:** If the Insured fails to give notice of a Claim as soon as practicable as required in IX.A above, such failure shall not invalidate coverage for the Claim **unless** we demonstrate that we have been materially prejudiced by the late notice. In other words, we will not deny coverage based solely on a failure to give prompt notice, except to the extent that the delay has caused us actual material prejudice in our ability to defend or respond to the Claim.
3. **Notice of Circumstances (Potential Claims):** If during the Policy Period (or any applicable Extended Reporting Period) an Insured first becomes aware of any specific Wrongful Act, fact, or circumstance that could reasonably give rise to a future Claim, the Insured may provide written notice to us of such circumstances. If such notice is given to us during the Policy Period (or Extended Reporting Period), then any Claim that is subsequently made against an Insured arising from those reported circumstances shall be deemed to be a Claim first made during this Policy Period (on the date we received the notice of circumstances). We will treat any such subsequent Claim as if it had been reported at the time of the original notice of circumstances.
4. **Contents of Notice of Circumstances:** If you choose to report circumstances that may give rise to a Claim, you should include the following information in your notice (to the extent known):
    1. A description of the specific Wrongful Act(s) or alleged wrongful conduct at issue, and the circumstances in which it occurred or is suspected to have occurred;
    2. The nature of any potential or alleged damage or injury that may result from such circumstances;
    3. The identities of any potential claimants (persons or entities likely to bring a Claim) and any Insureds known to be involved in or affected by the matter; and
    4. The manner in which you first became aware of the Wrongful Act, fact, or circumstance (including the date it came to your attention).
    5. Providing as much detail as possible will help establish any later Claim as relating back to this notice of circumstances.
5. **Notices from Insurer to Insured:** Any notices required to be given by us to you (such as notice of cancellation or non-renewal, if applicable) shall be sent in writing to the Named Insured at the address specified in the Declarations, or to any updated address of record provided to us in writing. Such notice will be effective upon mailing or electronic transmission by us to that address.
6. **Optional Notice Provisions:** If any Coverage Part of this Policy provides that you **may** (but are not required to) provide notice of an incident, event, or potential claim to us (sometimes called a “notice of circumstance” or similar provision), your decision not to give such optional notice will not prejudice your right to coverage for a Claim arising from

the incident or event at a later date. In other words, if a Coverage Part permits but does not require early notice of a potential Claim, the failure to exercise that option will not, in itself, prevent you from obtaining coverage for a related Claim, provided that the Claim is reported in accordance with the terms of this Policy (or any renewal or replacement of this Policy).

SECTION X. COOPERATION

You (as identified in the Application or Endorsements) agree to provide us with all information, assistance, and cooperation which we may reasonably request in connection with any Claim, potential Claim, or circumstance notified under this Policy. This includes assisting in the investigation, defense, and settlement of Claims, attending hearings and trials, securing and giving evidence, obtaining the attendance of witnesses, and conducting negotiations. In the event of any Claim, you further agree not to do anything that could intentionally prejudice our position or our potential or actual rights of recovery.

The failure of any one Insured to cooperate with us as required by this section shall not be imputed to any other Insured. No Insured shall be denied coverage under this Policy solely because of the failure of another Insured to give notice or to cooperate with the investigation and defense of a Claim.

SECTION XI. ALLOCATION

If, in any Claim, an Insured incurs both covered Loss and uncovered loss (because some of the allegations or causes of action in the Claim are covered by this Policy and others are not, **or** because the Claim includes both Insured parties and others who are not insured under this Policy), we will allocate the Loss between covered and uncovered amounts as follows:

1. **Defense Costs:** 100% of Defense Costs incurred in defending a Claim will be considered covered Loss, and we will pay Defense Costs in full (excess of any applicable Retention) to defend the entire Claim, even if the Claim includes matters or parties not covered. We reserve the right to later reallocate Defense Costs in the event it is finally determined that certain Defense Costs were incurred exclusively in relation to non-covered matters, but we will advance Defense Costs for the entire Claim pursuant to Clause VIII.A., pending any such determination.
2. **Other Loss:** Loss other than Defense Costs (including damages, settlements, judgments, and awards) shall be allocated between covered Loss and uncovered loss based on the relative legal exposure and financial exposure of the parties to the covered and uncovered matters. This allocation will take into account the extent to which any covered Wrongful Acts and any uncovered conduct or parties contributed to the Loss amount.

We and you shall use our best efforts to agree upon a fair and proper allocation of Loss. If we and you cannot agree on the allocation, we will, until a final allocation is agreed upon or determined, advance the portion of the Loss which we believe in good faith to be covered under this Policy (subject to applicable limits of liability). The allocation of Loss (if disputed) may be determined by mediation, arbitration, or a final judgment or decision of a court or other adjudicative body.

SECTION XII. COORDINATION OF COVERAGE

If a single Claim gives rise to Loss that is covered under more than one Liability Coverage Part, the Claim will be treated as one loss event. We will pay only once for that Loss, and our total payment will not exceed the smallest of:

1. the actual amount of Loss;
2. the sum of the available Limits of Liability for each applicable Coverage Part that does **not** share a combined limit; or
3. the combined Limit of Liability shown in the Declarations for any applicable Coverage Parts that share such a limit.

The overall Policy Limit of Liability always applies. Allocation of the payment between Coverage Parts is for accounting purposes only and does not increase our total obligation.

Special Provision for Insured Person Loss: Notwithstanding the order of coverage above, if a single Claim includes any **Non-Indemnifiable Loss** of an Insured Person (for example, Loss of an Insured Person that the Organization is neither permitted nor able to indemnify), we will first pay such Loss on behalf of the Insured Person under the Management Liability Coverage Part (Directors & Officers Liability, Insuring Agreement A.1 for individual Insured Persons), until the limit of that Coverage Part is exhausted. Only then (if Loss remains) will we proceed to make payments under the other Coverage Parts in the order stated above for any remaining Loss.

SECTION XIII. CHANGES IN EXPOSURE

1. **Change in Control (Transactions Involving the Named Insured):** If during the Policy Period any of the following events occurs:
    1. The Named Insured merges into or consolidates with another entity such that the Named Insured is not the surviving entity; **or** any person, entity or group of affiliated persons/entities acquires ownership of more than 50% of the outstanding voting securities of the Named Insured (representing the present right to vote for the election of directors or equivalent management positions of the Named Insured);
    2. The Named Insured sells more than 50% of its assets to any person or entity (or group of persons or entities acting in concert);
    3. The Named Insured completes an initial public offering of its securities, or effects a reverse merger into a publicly traded entity, such that the Named Insured becomes a publicly held company; **or**
    4. The Named Insured becomes a Debtor in Possession, or an administrator, receiver, conservator, liquidator, trustee or similar official is appointed to supervise, manage, or take control of the Named Insured (including the point at which the Named Insured emerges from bankruptcy protection),

    (each of the above being a **Change in Control**), then you must give written notice to us of such Change in Control as soon as practicable, but in no event later than 60 days after the effective date of the transaction or event. Upon a Change in Control, coverage under all Coverage Parts shall continue in force until the end of the Policy Period, but only with respect to Claims for Wrongful Acts (or, where applicable, other covered

events) that occur entirely **before** the effective date of the Change in Control. No coverage shall be available under this Policy for any Wrongful Act, error, omission, or other event occurring on or after the effective date of the Change in Control.

After a Change in Control, the entire remaining premium for this Policy shall be deemed fully earned as of the date of the transaction (meaning no refunds shall be due). You shall have the right, within 60 days of the Change in Control, to request an extension of coverage for the run-off period specified in the Declarations (the **Run-Off Coverage Period**). This Run-Off Coverage, if purchased, will extend the reporting period under this Policy (for the affected Coverage Parts) to allow Claims to be reported during the Run-Off Coverage Period, but only for covered Wrongful Acts (or other covered events) that occurred prior to the effective date of the Change in Control. We will issue a Run-Off endorsement providing such Extended Reporting Period if you elect it and pay the additional premium stated in the Declarations for the Run-Off Coverage. The Run-Off Extended Reporting Period (if purchased) shall begin on the day immediately following the effective date of the Change in Control. If a Run-Off Extended Reporting Period is purchased pursuant to this section, no separate Extended Reporting Period under section VII above will apply for the affected Coverage Parts.

2. **Acquisition or Creation of a Subsidiary (or New Plan):** If, before or during the Policy Period, the Organization (i) acquires Control of an entity (by acquiring more than 50% of its voting securities or by acquiring substantially all of its assets), **or** (ii) creates or acquires a new Subsidiary, **or** (iii) creates or acquires a new Plan subject to the Fiduciary Liability Coverage Part, then such newly acquired or created organization or Plan shall automatically be covered under this Policy, but only for Wrongful Acts (or covered conduct) taking place after the effective date of such acquisition or creation.

   However, if the assets or revenues of any acquired entity exceed 10% of the total consolidated assets or revenues of the Named Insured (as reflected in the Named Insured's most recent audited financial statements as of the inception of this Policy), you must provide written notice of the acquisition to us as soon as practicable (but no later than 90 days after the effective date of the acquisition or creation). We reserve the right to impose additional or different terms, conditions, and/or to charge a reasonable additional premium as a condition of extending coverage to such large acquisition or newly formed entity beyond the initial 90-day period. Coverage for any such acquired entity or created Subsidiary beyond 90 days from the transaction is contingent upon your agreement to any additional terms and payment of any required premium. If agreement on terms or premium cannot be reached, coverage for the new entity may cease after 90 days from the acquisition.

   This section XIII.B does not apply to any Claim based upon or arising out of any Wrongful Act (or **Related Wrongful Acts**) that occurred in whole or in part **before** the date the new entity became a Subsidiary or was merged or consolidated with the Organization. In addition, no coverage shall apply to Loss arising from any act, error, or omission of the new entity or its Insured Persons that occurs after the date of acquisition but is related to acts or omissions that took place before the acquisition. (Such prior acts

or related acts may be considered for coverage under a separate policy or endorsement, if available and negotiated with us.)

3. **Loss of Subsidiary Status (Sale or Divestiture):** If any organization ceases to be a **Subsidiary** before or during the Policy Period (for example, due to sale, dissolution, or other divestiture such that the Named Insured no longer maintains Control of that entity), then coverage under this Policy for such entity and its Insured Persons shall continue but only for Claims for Wrongful Acts that occurred entirely during the time that entity was a Subsidiary. In other words, after the date the entity ceases to be a Subsidiary, no coverage shall apply under this Policy for any new Wrongful Acts (or other covered events) by that entity or its Insured Persons.

If a Plan insured under the Fiduciary Liability Coverage Part is terminated before or during the Policy Period, coverage for such Plan (and any Insureds in their fiduciary capacities with respect to that Plan) will continue in force until the expiration of the Policy Period (or earlier termination of the Fiduciary Liability Coverage Part), but only for Wrongful Acts or breaches of fiduciary duty that occurred prior to the date the Plan was terminated. Thereafter, no coverage under this Policy shall apply for acts, errors or omissions in the administration or management of the terminated Plan, except to the extent an Extended Reporting Period applies.

SECTION XIV. APPLICATION (REPRESENTATIONS AND SEVERABILITY)

You (the Insureds) represent and acknowledge that the statements and information contained in the **Application** for this Policy are true, accurate, and complete, and that we have issued this Policy in reliance upon the truth and accuracy of those representations. The Application (and all written materials submitted or created as part of the underwriting process, including any warranties or supplemental information provided to us) is deemed to be incorporated into and constituting a part of this Policy.

If the Application contains any misrepresentation or omission of a material fact, and if such misrepresentation or omission materially affected either the acceptance of the risk or the hazard assumed by us, then no coverage shall be afforded under this Policy for any Claim involving any Insured who knew, as of the inception date of this Policy, the facts that were not truthfully disclosed in the Application. The foregoing applies whether or not the particular Insured actually knew that the Application contained such misrepresentation or omission. For purposes of determining the application of this provision:

1. Knowledge of any fact or omission by one Insured Person (including any Insured Person) shall not be imputed to any other Insured Person. No Insured Person shall be denied coverage based on a misrepresentation in the Application, unless that individual actually knew the Application was untrue with respect to the material facts at issue.
2. Only the knowledge of a **Senior Executive** shall be imputed to the **Organization**. Thus, the **Organization**'s coverage (and any coverage for its **Plans**) will be excluded due to a misrepresentation or omission in the **Application** only if a **Senior Executive** knew the true facts that were not disclosed. Knowledge of any other **Insured Person** who is not also a **Senior Executive** will not be imputed to the **Organization**.

In no event will we **rescind** or void this Policy in its entirety based on misrepresentations in the Application. However, this provision does not prevent us from denying or limiting coverage as to a specific Insured or Claim if the circumstances so warrant, as provided above. This Policy is non-rescindable by us after inception for any reason other than non-payment of premium.

SECTION XV. ACTION AGAINST THE INSURER

No claimant or other party may include the Insurer in any Claim filed against an Insured, and an Insured may not join, implead, or otherwise bring the Insurer into such a proceeding as a third party.

No action at law or in equity may be brought against the Insurer to recover under this Policy unless, as conditions precedent: (i) the Insured has fully complied with every term and condition of the Policy, and (ii) the Insured's liability for Loss has been fixed by a final, non-appealable judgment or by a written settlement signed by the Insured, the claimant, and the Insurer.

For coverage written on a first-party basis—including any coverage under the Cyber Coverage Part for a Data Incident or other direct loss—no action may be taken against the Insurer unless all Policy terms have been met, including timely notice. The Insured must wait at least ninety (90) days after submitting a sworn proof of loss with full particulars before starting any action, and any such action must be brought within two (2) years after the Insured first discovered the event or loss, unless a longer period is required by law.

Nothing in this clause grants a third party any right to sue the Insurer directly except as provided by applicable law; it governs only actions brought by an Insured under this Policy.

SECTION XVI. ASSIGNMENT

No change, modification, or assignment of interest under this Policy shall be valid unless made by a written endorsement issued by us and expressly made part of this Policy. This Policy (and any rights or interests hereunder) may not be assigned by any Insured without our prior written consent, which may be granted or withheld in our sole discretion. Any assignment made without our written consent shall be null and void as to us.

SECTION XVII. NAMED INSURED'S AUTHORITY

By acceptance of this Policy, the Named Insured is authorized to act on behalf of all Insureds with respect to all matters regarding this Policy. In particular (but without limitation), the Named Insured will act on behalf of all other Insureds for the purposes of: giving and receiving notices (including notice of cancellation or nonrenewal), paying premiums and receiving any return premiums, electing or declining any Extended Reporting Period or other optional coverages, endorsing the Policy, consenting to any settlement (to the extent such consent is required from an Insured), and otherwise managing or administering this Policy. All Insureds agree that the Named Insured shall be the sole agent for and represent all Insureds in such matters.

SECTION XVIII. CANCELLATION

1. **By Us (Non-Payment of Premium):** We may cancel this Policy or any Coverage Part **only** for non-payment of premium. In the event we must cancel for non-payment, we will provide written notice to the Named Insured at least twenty (20) days (or such longer period as may be required by applicable law) before the effective date of cancellation. The notice will state the effective date of cancellation, and the Policy Period shall terminate on that date if the premium remains unpaid. If you remit the full premium owed during the notice period, the cancellation shall not take effect and coverage will continue uninterrupted. (Except for non-payment of premium, we will not cancel this Policy during the Policy Period.)
2. **By You (Named Insured):** The Named Insured may cancel this Policy or any Coverage Part by giving us prior written notice of the desired cancellation date. The cancellation will be effective on the date we receive your notice (unless a later date is specified by you). If the Named Insured cancels the Policy, we will refund any unearned premium on a pro-rata basis for the unused portion of the Policy Period. Our tender of any return premium is not a condition precedent to the effectiveness of cancellation, but will be made as soon as practicable after cancellation.
3. **Non-Renewal:** If we elect not to renew this Policy (or a specific Coverage Part), we will provide the Named Insured with no less than sixty (60) days advance notice of non-renewal prior to the expiration of the Policy Period (or such notice period as required by state law). The notice will be sent to the Named Insured's address shown in the Declarations (or the last known address on file) and will include the reason for non-renewal if required by law.

SECTION XIX. BANKRUPTCY OR INSOLVENCY

The bankruptcy, insolvency, receivership or dissolution of any Insured (including any Organization or any Insured Person) shall not relieve us of our obligations under this Policy. In the event a liquidation or reorganization proceeding is commenced by or against the Organization (under federal bankruptcy law or any similar law), the Organization and the Insureds agree to waive and release any automatic stay or injunction which may apply in such proceeding to this Policy or any proceeds of this Policy. The Insureds further agree that, if requested by us, they will cooperate in obtaining relief from any such stay or injunction to allow the investigation, defense, settlement, payment, or advancement of Loss under this Policy.

SECTION XX. REFERENCES TO LAWS

Any statute, act, or code mentioned or referenced in this Policy (including in any endorsement) is deemed to include all amendments to such laws and all rules or regulations promulgated under such laws. If a statute, act, or code is mentioned in this Policy and is followed by the phrase "or any similar law," it shall be construed to include any similar federal, state, local or foreign law, common law, or regulation that is comparable in intent or effect to the cited law.

SECTION XXI. MOST FAVORABLE JURISDICTION FOR CERTAIN DAMAGES

Certain types of damages, fines, or penalties may not be insurable under some laws. It is the intent of this Policy to afford coverage to the fullest extent permitted by law for punitive, exemplary, and multiplied damages, and for civil fines and penalties, to the extent such matters

constitute Loss under the Policy. Accordingly, the insurability of such damages, fines or penalties shall be determined under the internal laws of any applicable jurisdiction that most favors coverage for the Insured for such damages or penalties. This means that if any jurisdiction connected to the Claim, the Insured, the Policy, or the Insurer permits insurance coverage for punitive, exemplary, or multiplied damages (or for specific statutory fines or penalties), then that jurisdiction's law may be applied (at the Insured's request) in determining the insurability of those amounts, even if the Claim is brought elsewhere.

Specifically, with respect to:

1. any judgment or award that includes punitive, exemplary, or multiplied damages;
2. any civil fine or penalty assessed against an Insured Person pursuant to Section 2(g)(2)(B) of the U.S. Foreign Corrupt Practices Act (15 U.S.C. §78ff) or Section 308(a) of the Sarbanes-Oxley Act of 2002 (15 U.S.C. §7246(a)), or any similar statutory penalty; **and**
3. any other matters which are uninsurable under the law that governs this Policy,

the issue of insurability shall be resolved by reference to the applicable law that most favors coverage for such Loss. We will not contend that such damages, fines, penalties or other Loss is uninsurable under this Policy except to the extent that it is uninsurable under **any** applicable law that has a significant connection to the Claim or to the Insured seeking coverage.

SECTION XXII. ADDITIONAL CONDITIONS

1. **Changes to the Policy:** Notice to or knowledge possessed by any agent, broker, or other person shall not effect a waiver or change in any part of this Policy, nor prevent us from asserting any right under the terms of this Policy. This Policy can only be changed, modified, or waived by a written endorsement issued by us and made a part of this Policy. No representative of the Insurer is authorized to make or agree to any alteration to the Policy except by formal endorsement.
2. **Titles and Headings:** The titles, headings, and captions in this Policy (including any endorsements) are included for convenience or reference only. They are not part of the terms of the insurance contract and shall not be considered in determining the meaning or effect of any provisions of this Policy.
3. **Premium and Adjustments:** You, as the Named Insured, agree to pay all premiums due for this Policy to us or to our authorized agent in accordance with the terms of the invoice or billing statement. The premium amount stated in the Declarations is the minimum premium for the Policy Period. If during the Policy Period there are changes in exposure or coverages that materially increase our risk (such as the acquisition or creation of a new Subsidiary, a merger, an Initial Public Offering, or the addition of new Coverage Parts or Insuring Agreements by endorsement), we reserve the right to adjust the premium during the Policy Period or upon renewal. Any additional premium charge or return premium due as a result of such changes will be calculated in accordance with our rules and rates. The Named Insured agrees to pay any additional premium reasonably required for an increase in exposure or coverage, and we will refund any return premium due for a decrease in exposure or elimination of coverage, pro rata for the time such coverage was not provided.

4. **Choice of Law and Forum:** This Policy, including its construction, application, and validity, shall be governed by the internal laws of the state specified in the Declarations as the principal address of the Named Insured. Any disputes involving this Policy shall be resolved in accordance with the laws of that jurisdiction, without regard to its conflict-of-law principles. (If no state is specified, or if the Named Insured's address is outside the United States, then the law of the State of New York shall apply.) Unless otherwise agreed by the parties, any litigation concerning this Policy shall be brought in a competent court in the chosen jurisdiction whose law applies.
5. **Other Insurance:** This Policy responds only after every other valid and collectible insurance that covers the same Loss, unless that other insurance is expressly written to be excess of this Policy and cites this Policy's form number. If a policy you purchased for the same risk covers the Loss, this Policy will apply strictly in excess of that policy's limits or, at the Insurer's sole option, on a primary basis with the right to seek contribution from the other insurer. The Insurer's payment will not exceed the proportion that this Policy's Limit of Liability bears to the combined limits of all insurance available for the Loss.

Further, if any Claim or Loss covered under this Policy is also covered, in whole or in part, under one or more other policies issued by us (or any member company or affiliate of ours) to any Insured, our maximum aggregate liability under all such policies combined shall not exceed the largest single available limit of liability under any one of those policies. This means that you cannot recover more than once from us for the same Claim or Loss. The coverage provided under multiple policies issued by us for the benefit of an Insured shall not be duplicated or stacked. Any amounts paid under one such policy will reduce the limits available under the other policy (or policies) issued by us for the same Loss, and we may choose which policy or policies will respond.

(The above Other Insurance clause does not apply to insurance policies specifically arranged to be excess of this Policy, such as an excess Side-A DIC policy, nor will it operate to dilute or impair such excess insurance. It is intended to prevent double recovery or the unintended stacking of limits where the Insured has multiple policies from the same insurer covering overlapping risks.)

SECTION XXIII. COMMON EXCLUSIONS – APPLICABLE TO ALL LIABILITY COVERAGE PARTS

We shall not be liable to pay any Loss (including Defense Costs) in connection with any Claim made against any Insured under any Liability Coverage Part of this Policy:

1. **Profit or Fraud:** To the extent the Claim is brought about or contributed to by: (a) an Insured gaining any personal profit, financial advantage, or other remuneration to which they were not legally entitled; **or** (b) the deliberate fraudulent act or criminal act of any Insured. However, this exclusion shall not apply unless and until there is a final, non-appealable adjudication in the underlying proceeding establishing that such conduct occurred. (For example, this exclusion will not apply until a trial court judgment or other final adjudication finds that an Insured committed deliberate fraud or obtained an illegal profit, and that judgment is no longer subject to appeal.)

2. **Prior Notice / Prior Claim:** Based upon, arising out of, or in any way involving any Wrongful Act or any fact, circumstance or situation which has been the subject of any notice of claim or potential claim given before the inception of this Policy under any other insurance policy or coverage part of which this Policy is a direct or indirect renewal or replacement. In other words, if you have given notice of a claim or circumstance to a prior insurer (or under a prior policy issued by us) before the start of this Policy Period, any continuation of that matter is excluded from coverage under this Policy.
3. **Known Wrongful Acts (Prior Knowledge):** Based upon, arising out of, or in any way involving any Wrongful Act (or Interrelated Wrongful Act) that any **Senior Executive** of the Organization was aware of prior to the **Prior Acts Date** stated in the Declarations (or, if no Prior Acts Date is specified, prior to the inception date of the applicable Coverage Part), if such **Senior Executive** had reason to believe at that time that such Wrongful Act could reasonably be expected to result in a Claim. This exclusion applies only with respect to an Insured who had such knowledge or reason to believe. It will not apply to any other Insured who did not have such knowledge (see Imputation clause below).
4. **Prior & Subsequent Subsidiary Acts:** Based upon, arising out of, or in any way involving:
    1. any Wrongful Act actually or allegedly committed **before** the effective date that any entity became a **Subsidiary** (or before the effective date of a merger or consolidation in which the Organization is the surviving entity), if such Claim is made against an Insured in their capacity as an Insured of that entity;
    2. any Wrongful Act actually or allegedly committed **on or after** the effective date an entity became a Subsidiary (or was merged with the Organization) if such Wrongful Act, **together with** a Wrongful Act committed or allegedly committed before the date the entity became a Subsidiary or was merged, would constitute **Related Wrongful Acts**; **or**
    3. any Wrongful Act actually or allegedly committed **after** the date an entity ceases to be a Subsidiary, if such Claim is made against an Insured in their capacity as an Insured of that former Subsidiary.

    (This exclusion ensures that we do not insure, under this Policy, conduct of an acquired entity that took place prior to acquisition (or conduct after acquisition that is continuous of pre-acquisition conduct), or conduct of an entity after it has been sold or dissolved. Coverage for such acts would need to be negotiated separately.)

5. **Contamination:** Based upon, arising out of, or in any way involving any actual, alleged, or threatened discharge, dispersal, release, escape, seepage, migration, or emission of Contaminants into or on real or personal property, water, air, or any other environmental medium; **or** any direction or request to test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize Contaminant. "**Contaminats**" includes, but is not limited to, any solid, liquid, gaseous or thermal irritant or pollutant, smoke, vapor, soot, fumes, acids, alkalis, chemicals, hazardous substances, waste, biological or infectious agents, mold,

fungi, spores, electromagnetism, nuclear materials, radiation, or any other substance defined by environmental law as a pollutant or contaminant.

Imputation and Severability of Exclusions: For purposes of determining the applicability of the above exclusions, no Wrongful Act, knowledge, or state of mind of any Insured Person will be imputed to any other Insured Person. Only the Wrongful Acts, knowledge, or conduct of a past, present or future Chief Executive Officer or Chief Financial Officer of the Named Insured shall be imputed to the **Organization** (and only for purposes of determining if an exclusion applies to claims against the Organization).

Where an exclusion above requires a final adjudication in the underlying proceeding (such as the Profit/Fraud exclusion), we will provide defense coverage for Insureds until such time as the required adjudication establishes that the exclusion applies, subject to the terms and conditions of this Policy. If any Insured is exonerated from the allegations or conduct at issue, this Policy will continue to provide them coverage to the extent of its terms.

FIDUCIARY LIABILITY

SECTION I: INSURING AGREEMENTS

Fiduciary Liability Coverage – We agree to pay on behalf of the **Insured** all **Loss** resulting from a **Claim** first made against the **Insured** during the **Policy Period** (or any Extended Reporting Period) for a **Wrongful Act** and reported to us in accordance with Section IX. of this **Policy**'s General Terms and Conditions.

SECTION II: DEFINITIONS

1. **Claim** means:
    1. a written demand for monetary or non-monetary or injunctive relief against any an **Insured**;
    2. a civil, arbitration, administrative or regulatory proceeding initiated against an **Insured**; or
    3. an arbitration, mediation or other alternative dispute resolution proceeding against an **Insured**;

    but will not include any criminal proceedings or any investigations of any **Insureds**.
2. **Insured Person** means any natural person who was or is:
    1. an **Executive**;
    2. an **Employee** of ; or

3. a fiduciary, trustee, or administrator of a **PlanInsured** means means any **Organization**, **Insured Person**, or **Plan**.
4. **Loss** means the amount that an **Insured** becomes legally obligated to pay as a result of a **Claim**, including compensatory damages, settlements, judgments, prejudgment or post-judgment interest, statutory attorney fees pursuant to a covered judgment against an **Insured**, punitive or exemplary damages or the multiplied portion of any multiplied damages award, and **Defense Costs**, except to the extent any such amounts are uninsurable as a matter of applicable law.

   Loss does not include:

   a. the cost of providing non-monetary or injunctive relief;

   b. taxes or the loss of tax benefits, fines, or penalties; or

   c. any amount or matter deemed uninsurable under applicable law.
5. **Plan** means any of the following that is sponsored solely by the **Organization** or jointly with a labor organization, solely for the benefit of **Employees**:
   1. An employee benefit, pension benefit, or welfare benefit plan as defined in **ERISA**.
   2. Any other employee benefit plan not subject to **ERISA**, including fringe or excess benefit plans.
   3. A plan described above while in formation.
   4. A government-mandated workers' compensation, unemployment, social security, or disability program.
   5. A voluntary employees' beneficiary association under Internal Revenue Code § 501(c)(9).

   However, **Plan** does not include any multi-employer plan or employee stock-ownership plan.

6. **Wrongful Act** means (1) any breach of fiduciary responsibilities, obligations or duties imposed by ERISA or any similar law actually or allegedly committed by an **Insured** in its capacity as a fiduciary of a **Plan**; or (2) any matter claimed against an **Insured** solely by reason of such Insured's service as a fiduciary of a **Plan**.

SECTION III: LIMITATIONS OF LIABILITY AND RETENTIONS

1. **Limit of Liability:** The Limit of Liability for this Coverage Part is the amount specified in the Declarations for Fiduciary Liability coverage. This limit is the maximum aggregate amount the Insurer will pay for all Loss under this Coverage Part resulting from all Claims first made during the Policy Period and any Extended Reporting Period. The Limit of Liability is inclusive of Defense Costs; payment of Defense Costs will reduce and may exhaust the available Limit of Liability. The Limit of Liability for this Coverage Part is part of, and not in addition to, the Policy's Aggregate Limit of Liability (if any) stated in the Declarations. If a single Claim gives rise to coverage under multiple Liability Coverage Parts of this Policy, the maximum aggregate limit for that Claim shall not

exceed the largest applicable single Coverage Part limit. In the event Loss covered under this Coverage Part exceeds the remaining available Limit of Liability, the Insurer shall pay Loss of Insured Persons (if any) that is not indemnified by any Insured Entity (Non-Indemnifiable Loss) prior to paying other Loss, until the Limit of Liability is exhausted.

2. **Retention:** The Retention amount specified in the Declarations for Fiduciary Liability applies to each Claim under this Coverage Part. The Insurer's obligation to pay Loss (including Defense Costs) applies only to Loss in excess of the applicable Retention, and the Insurer will have no obligation to pay any portion of the Retention. The Retention shall be borne by the Insureds uninsured and at their own risk. If the Insurer advances Defense Costs or other Loss within the Retention, the Insured Organization (or Named Insured) shall reimburse such amounts to the Insurer upon request. No Retention shall apply to Loss that an Insured Person is legally prevented from being indemnified for by the Insured Entity (i.e. **Non-Indemnifiable Loss**). Subject to the foregoing, if an Insured Plan is legally permitted to fund some or all of a Loss (including Defense Costs) but fails to do so, such Loss within the Retention will be the responsibility of the Insured Plan or Insured Organization, as permitted by law.

(Any sublimits of liability or additional Retentions applicable to specific endorsements or coverage extensions (e.g. for HIPAA penalties or Voluntary Compliance programs, if added) will be set forth in those endorsements or in the Declarations. Unless otherwise stated, any such sublimit is part of, and not in addition to, the Limit of Liability for this Coverage Part.)

SECTION IV: EXCLUSIONS

1. The Insurer shall not pay Loss for any Claim:
    1. **Prior Notice** – based upon, arising from, or attributable to any fact, circumstance, situation, Wrongful Act or Claim which has been the subject of any written notice given under any other policy or coverage prior to the inception of this Coverage Part.
    2. **Prior or Pending Proceedings** – based upon, arising from, or attributable to any demand, suit, or other proceeding pending against any Insured on or before the applicable **Prior/Pending Litigation Date** stated in the Declarations, or the same or substantially the same fact, circumstance or situation underlying or alleged in such prior proceeding.
    3. **Bodily Injury/Property Damage** – for bodily injury, sickness, disease, death, mental anguish, or emotional distress of any person, or for damage to or destruction of any tangible property, including loss of use or diminution of value thereof.
    4. **Contaminant** – based upon, arising out of, or in any way relating to any actual, alleged or threatened discharge, dispersal, release, escape, seepage, migration, or disposal of **Contaminants** (including any nuclear material or nuclear waste), or any direction or request to test for, abate, monitor, clean up, remove, contain, treat, detoxify or neutralize Contaminant or nuclear material.

5. **Contractual Liability** – based upon, arising from, or attributable to any liability of an Insured under any contract or agreement, including any obligation of an Insured to contribute as an employer to any Insured Plan; provided, however, that this exclusion shall not apply to liability (a) that the Insured would have in the absence of such contract or agreement, or (b) assumed under any agreement or declaration of trust pursuant to which the Insured Plan was established.
6. **Employment-Related Acts** – based upon or arising out of any employment-related wrongful act or omission, including but not limited to any claim for employment discrimination, wrongful termination, harassment, failure to employ or promote, or any claim for unpaid wages (including overtime), workers' compensation benefits, unemployment or disability benefits, failure to provide required employee breaks, or any violation of the Fair Labor Standards Act, Equal Pay Act, Worker Adjustment and Retraining Notification (WARN) Act, or any similar federal, state or local law regarding employment standards.
7. **Settlor Acts** – based upon, arising from, or attributable to any act, error, or omission by any Insured in a settlor or similar capacity with respect to any **Plan**. This includes, but is not limited to, decisions or activities related to the design, structure, establishment, termination, amendment, or funding of any **Plan**.
8. **Personal Gain** – based upon, arising from, or attributable to an Insured gaining in fact any personal profit, remuneration or financial advantage to which such Insured was not legally entitled.
9. **Fraudulent or Willful Misconduct** – based upon, arising from, or attributable to any criminal or deliberately fraudulent act, or any willful violation of law, by an Insured, if a judgment or other final adjudication in the underlying proceeding establishes that such act, omission or violation occurred.

   For the above **Personal Gain** and **Fraudulent/Willful Misconduct** exclusions: (i) no Wrongful Act of any Insured shall be imputed to any other Insured for purposes of applying these exclusions, and (ii) with respect to an Insured Entity or Insured Plan, these exclusions shall not apply unless a past or present chief executive officer, chief financial officer, or general counsel of the Named Insured committed the disqualifying act, omission or violation.

2. Other than that portion of Loss constituting **Defense Costs**, the Insurer shall not pay Loss for any Claim:
   1. **Benefits Due** – for the actual or alleged failure to pay benefits due, or allegedly due, under any Insured Plan, including any amounts which would be due under the terms of any Plan if such Plan complied with all applicable law. **However,** this exclusion shall **not** apply to the extent that: **(i)** the Claim includes a covered allegation of a Wrongful Act by an Insured, and **(ii)** the benefits are owed as a personal obligation of an Insured Person and not paid from the Plan.

   2. **Failure to Fund** – based upon, arising from, or attributable to the failure to fund any Insured Plan, or to collect contributions owed to an Insured Plan.

3. **Return of Contributions** – for the return or reversion of any contribution or asset to an employer or Insured Entity from an Insured Plan, or for any loss of investment value or appreciation of plan assets that results from any such return or reversion of contributions.

Exclusions (B)(1)–(3) above mean that while the Insurer will defend the Insureds against claims demanding payment of benefits, contributions, or similar plan assets, the Insurer will not itself pay for the benefits, contributions, or plan assets that are allegedly due (except as provided under the narrow carve-back for personal liability of Insured Persons). The Insurer's payments under this Coverage Part for such Claims will be limited to Defense Costs, settlements, or judgments attributable to covered Wrongful Acts other than the value of the benefits or contributions in dispute.

3. **Other Exclusions:** Notwithstanding anything to the contrary, no coverage will be available under this Coverage Part for civil penalties or fees under the Health Insurance Portability and Accountability Act (HIPAA), any taxes or excise taxes (e.g. under the Internal Revenue Code or ERISA Section 502(c) other than civil penalties explicitly included in the definition of Loss), or for any obligations under workers' compensation, unemployment insurance, social security, or disability benefits laws (except to the extent the Claim involves COBRA as defined in ERISA, which is not excluded here). Coverage for certain statutory penalties (such as HIPAA or COBRA penalties) or voluntary compliance fees may be available by endorsement with sublimits, if so stated in the Declarations.

SECTION V: NOTICES AND CONDITIONS

1. **Claims Made and Reporting:** This Coverage Part is written on a claims-made basis. As a condition precedent to coverage, the Insureds must give written notice to the Insurer of any Claim first made during the Policy Period (or any applicable Extended Reporting Period). Such notice shall be given as soon as practicable after any Executive Officer of the Insured Entity or its risk manager becomes aware of the Claim, but in no event later than 90 days after the expiration of the Policy Period (if no Extended Reporting Period is in effect) or by the end of the Extended Reporting Period (if purchased).

   If during the Policy Period (or Extended Reporting Period) the Insureds become aware of circumstances that may reasonably give rise to a future Claim, the Insureds may provide written notice of such circumstances to the Insurer, including the anticipated allegations and particulars of persons and entities involved. If such notice of circumstances is duly given, then any Claim subsequently arising from those reported circumstances shall be deemed to have been first made during the Policy Period (or Extended Reporting Period) in which the notice was accepted by the Insurer. No coverage shall apply to defense expenses or other loss incurred prior to the time such circumstances develop into a Claim and are reported as a Claim in accordance with this section. All notices of Claims

or circumstances under this Coverage Part shall be in writing (or by authorized electronic means) and directed to the Insurer at the address specified in the Declarations (or to any updated address the Insurer designates for claims notice). Notices to any Insured may be given to the Named Insured at the address on file. Notice given as described in this section shall be deemed effective upon receipt by the Insurer.

2. **Duty to Defend and Defense Procedures:** The Insurer has the right **and duty** to defend any covered Claim against the Insureds under this Coverage Part, even if any of the allegations are groundless, false or fraudulent. The Insurer's duty to defend will cease upon exhaustion of the applicable Limit of Liability. The Insurer may investigate and enter into settlement negotiations of any Claim as it deems necessary. The Insureds shall not admit or assume liability, enter into any settlement agreement, stipulate to any judgment, incur any Defense Costs, or otherwise voluntarily make any payment or assume any obligation with respect to any Claim **without the Insurer's prior written consent**. Only those settlements, judgments, and Defense Costs to which the Insurer has pre-approved in writing (or which are incurred consistent with the provisions of this section) shall be recoverable as Loss under this Coverage Part. The Insurer's consent shall not be unreasonably withheld. The failure of one Insured to comply with the terms of this section shall not prejudice the rights of any other Insured who has complied with the conditions.

   If the Insureds are able to settle a Claim (or multiple related Claims subject to a single Retention) for an amount not exceeding the applicable Retention, the Insurer's consent shall not be required for such settlement. If the Insurer recommends a settlement within policy limits and the claimant is willing to settle, but an Insured refuses to consent to the settlement, the Insurer shall be entitled to implement the following "hammer clause": the Insurer's liability for all Loss on account of such Claim will not exceed (i) the amount of the proposed settlement plus covered Defense Costs incurred up to the date the Insured refused to consent, **plus** (ii) 85% of any covered Loss (including Defense Costs) in excess of the amount in clause (i). The remaining 15% of such excess Loss (above the earlier proposed settlement amount) shall be carried by the Insured uninsured, and shall not be covered under this Policy. The Insured's refusal to consent shall not affect the Insurer's duty to continue to defend the Claim, but the Insured will be responsible for the uncovered portion of Loss as set forth above. The Insurer and Insureds agree to use best efforts to mutually cooperate and to not unreasonably withhold consent to any settlement proposal by either party under this section.

3. **Cooperation:** The Insureds agree to provide the Insurer with all information, assistance and cooperation reasonably required of them in the investigation, defense, negotiation or settlement of any Claim or potential Claim. Upon the Insurer's request, the Insureds will also assist in enforcing any rights of contribution or subrogation against any person or entity that may be liable to any Insured in connection with a Claim. The Insureds further agree that they shall do nothing that prejudices the Insurer's position or potential rights of recovery. Subject to the provisions of the prior paragraph, the Insureds may not incur

Defense Costs or admit any liability with respect to any Claim without the Insurer's consent.

4. **Allocation of Loss:** If a Claim includes both covered matters and uncovered matters (including claims against persons or entities not insured under this Policy), either in the same suit or in separate related actions, the Insureds and the Insurer shall use their best efforts to fairly and reasonably allocate any resulting loss between covered Loss and uncovered loss. If the parties cannot agree on an allocation, the Insurer shall advance Defense Costs that it believes to be covered until a different allocation is negotiated, arbitrated or judicially determined. In any such allocation, 100% of Defense Costs attributable to claims against insured parties (even if jointly defending with uninsured parties) shall be allocated to covered Loss to the extent those Defense Costs benefit the defense of insured claims. Loss other than Defense Costs shall be allocated between covered and uncovered matters based on the relative legal and financial exposure of all parties to the covered allegations, and, if applicable, based on the relative benefits obtained in connection with any settlement of covered vs. uncovered matters. The Insurer's obligation to pay Loss under this Coverage Part applies only to the portion of Loss that is determined to be covered under this Policy.
5. **Other Insurance:** This insurance shall be excess of and shall not contribute with any other valid and collectible insurance available to any Insured (including but not limited to insurance under which any Insured is a joint or additional insured), unless such other insurance is written specifically excess of this Coverage Part. In no event shall this insurance be considered co-insurance with any other policy. **However,** this exclusion shall not apply to a personal umbrella liability policy maintained by an Insured Person, nor to an employer's fidelity bond or similar insurance that is written to specifically cover losses to an Insured Plan. If a Loss under this Coverage Part is covered by other insurance, the Insureds must promptly provide the Insurer with copies of such policies as requested.
6. **Subrogation:** In the event of any payment of Loss under this Coverage Part, the Insurer shall be subrogated to all rights of recovery of the Insureds against any person or organization to the extent of such payment. The Insureds agree to execute all papers required and do everything necessary to secure and preserve such subrogation rights, including the execution of any documents to help the Insurer effectively bring a subrogation action in the name of the Insureds. The Insurer will not subrogate against an Insured Person except and to the extent that such Insured Person has been finally adjudged to have committed a deliberate fraudulent or criminal act (as described in Exclusion (A)(10) above) or any other intentional wrongdoing that is excluded from coverage. Any recoveries obtained through subrogation (after deducting reasonable expenses incurred in obtaining such recovery) shall be applied first to the Insurer up to the amount of its Loss payment, then to any Retention amounts paid by the Insureds, and any remaining amounts shall be paid to the Insureds.
7. **Extended Reporting Period:** If the Insurer or the Named Insured cancels or refuses to renew this Coverage Part (other than for non-payment of premium), the Named Insured shall have the right, upon payment of the additional premium stated in the Declarations, to elect an **Extended Reporting Period** (ERP). The ERP will extend the period for

reporting Claims first made against the Insureds after the end of the Policy Period, but only for Wrongful Acts occurring entirely before the end of the Policy Period and otherwise covered by this Coverage Part. The Named Insured may elect a one-year ERP (or a longer period, if offered in the Declarations) by giving written notice to the Insurer of such election and paying the specified additional premium within 30 days after the effective date of cancellation or nonrenewal. The additional premium for the ERP shall be fully earned at inception of the ERP and the ERP may not be cancelled by the Insurer. The ERP is not a new policy and does not increase or replenish the Limits of Liability – it is part of the terminated coverage, providing an extended time for reporting Claims arising from prior acts. At the commencement of the ERP, the entire premium shall be deemed earned, and all premium paid for the ERP is non-refundable.

8. **Coverage Territory and Legal Actions:** This Coverage Part applies to Claims made worldwide, provided the Claim is brought within a court or other tribunal within the applicable jurisdiction stated in the Policy (or as permitted by the applicable law). All payments due under this Coverage Part shall be made in the currency stated in the Declarations. No legal action may be taken against the Insurer unless, as a condition precedent, there has been full compliance with all the terms of this Coverage Part and the Policy, and the Insured's obligation to pay has been finally determined either by a final judgment against the Insureds or by written agreement of the Insurer. No person or entity has any right under this Coverage Part to join the Insurer as a party to any action against the Insureds to determine the Insureds' liability, nor may the Insurer be impleaded by the Insureds or their legal representatives in any such proceeding.
9. **Conformance to Law:** Any terms of this Coverage Part which are in conflict with the applicable laws governing this policy in any state shall be deemed amended to conform to such laws. If any provision of this Coverage Part is found to be invalid or unenforceable under applicable law, the remainder of its terms and conditions shall remain in full force and effect.
10. **Headings and Glossary:** The descriptions in the headings and sub-headings of this Coverage Part (and any endorsements) are inserted solely for convenience and do not constitute any part of the terms or conditions of coverage. Capitalized terms used in this Coverage Part are defined in Section II or in the common Definitions section of the Policy. Words in the singular shall include the plural, and vice versa, as required by context. Words in **bold** type have special meaning in this Coverage Part.
11. **Bankruptcy or Insolvency:** The bankruptcy or insolvency of an Insured (including an Insured Plan) shall not relieve the Insurer of its obligations under this Coverage Part. In the event a liquidation or reorganization proceeding is commenced by or against an Insured Entity or Insured Plan under Title 11 of the United States Code (Bankruptcy) or any similar state or foreign law, the Insureds and the Insurer agree not to oppose or object to any effort by the Insurer or any Insured to obtain relief from any stay or injunction applicable to the Policy or its proceeds, to the extent such relief is necessary to allow the Insurer to respond to a Claim in accordance with the terms of this Coverage Part.
12. **Representation / Severability:** By acceptance of this Coverage Part, the Insureds agree that the statements in the Application for coverage are true and are the basis of

this Policy and have been relied upon by the Insurer in issuing this Coverage Part. This Coverage Part is issued in reliance upon the truth of those representations. The Application shall be considered as incorporated in and constituting part of the Policy. It is agreed that, with respect to the Application and any information provided to the Insurer as part of the underwriting of this Coverage Part, **no statements made or knowledge possessed by any Insured shall be imputed to any other Insured for the purpose of determining coverage**. In particular, the knowledge of any past or present director, officer or Employee of the Insured Entity who is not a **Signing Executive** (as defined in the common Policy terms) shall not be imputed to any other person for purposes of determining if coverage is available. However, the knowledge of any Signing Executive (such as a chief executive or chief financial officer who signed the application) shall be imputed to the Insured Entity, and any knowing misrepresentation or fraud by such person in the Application may be grounds to void or rescind coverage for the Insured Entity (and for any Insureds who knew of such misrepresentation) as permitted by law. This Coverage Part shall otherwise be non-rescindable as to any Insured Person who did not personally make any material misrepresentation in the Application.

End of Fiduciary Liability Coverage Part.

(All other terms, conditions, and exclusions of the Policy remain unchanged.)